theranos
redefining healthcare

July 16, 2007

Justin Maxwell
[redacted]
San Francisco, CA 94110

Dear Justin,

On behalf of Theranos, Inc, I am pleased to extend a conditional offer of employment to you as the Director, User-Centered Design / Development, reporting to [redacted] as Chief Design Architect. Your semi-monthly salary will be $[redacted], approximating an annual salary of $[redacted] per year. Your position is classified as exempt; therefore, you are not eligible for overtime. Your proposed start date is Monday, September 4, 2007. On your start date, please report directly to your manager.

Please be advised that our offer of employment is conditioned upon your signing the "At Will Employment, Confidential Information, Invention Assignment, and Arbitration Agreement," favorable background checks, your signing the "Confirmation of Receipt" (of Employee Handbook) form which indicates your agreement to adhere to current company policies and procedures, and your ability to provide Theranos with appropriate documentation confirming your identity and your authorization to work in the United States. Such documentation must be provided to us within three (3) business days of your date of hire.

As a regular full-time employee, you will be eligible to participate in the current employee benefits program. Human Resources will give you an orientation covering all of your benefit options and any contributions to premiums you may be responsible for within your first few days of employment.

Subject to the approval of the Company's Board of Directors the Company will grant you an option to purchase 45,000 shares of the Company's Common Stock at a price per share equal to the fair market value per share of the Common Stock on the date of grant, as determined by the Company's Board of Directors. 25% of the shares subject to the option shall vest 12 months after the date your vesting begins subject to your continuing employment with the Company, and no shares shall vest before such date. The remaining shares shall vest monthly over the next 36 months in equal monthly amounts subject to your continuing employment with the Company. This option grant shall be subject to the terms and conditions of the Company's Stock Option Plan and Stock Option Agreement, including vesting requirements. No right to any stock is earned or accrued until such time that vesting occurs, nor does the grant confer any right to continue vesting or employment.

Additionally, in your role as Director, UCDd you are eligible for performance based bonuses.

Your employment with Theranos, Inc. is "at will". "At will" is defined as allowing either Employee or Employer to terminate the Agreement at any time, for any reason permitted by law, with or without cause and with or without notice. Additionally, your duties, title, compensation, benefits and reporting structure may be changed or modified at any time at the discretion of the Company, with or without notice.

In the event of any dispute or claim relating to or arising out of our employment relationship, you and the Company agree to initially attempt to resolve the issue informally or with the assistance of a neutral, outside mediator. If a dispute cannot be resolved by these means, the sole and exclusive means for final dispute resolution is through binding arbitration, as described in the Theranos Arbitration Policy. Note that this paragraph is only a short summary of Theranos' employment dispute resolution process; the complete text of the arbitration agreement may be found in the "At Will Employment, Confidential Information, Invention Assignment, and Arbitration Agreement."

In the event of termination of your employment with the Company, or at any other time at the Company's request, you agree to deliver promptly to the Company all property of the Company that is in your possession or control, including but not limited to computers, data, software, drawings, manuals, correspondence, notes, notebooks, sketches, formulae, records, e-mails, service parts, pagers, cell phones, PDAs, memoranda, service documents, customer proposals, price lists, customer lists, access cards or keys to the Company's or customer's facilities, equipment or vehicles, and all other materials and all copies thereof relating to the Company's business or which contain Proprietary Information. You further agree not to make or retain copies of any of the foregoing and will so represent to the Company upon termination of employment.

Justin, we feel that you will make a great contribution to Theranos and we look forward to your favorable reply and to working with you. If you have any questions prior to your start date, please do not hesitate to contact me or Theranos Human Resources.

Sincerely,

Elizabeth Holmes
President and CEO
(650) 470-6111
eholmes@theranos.com

To accept this conditional offer please sign and date this letter in the space provided below. A duplicate original is enclosed for your records. This letter, along with any agreements relating to proprietary rights between you and the Company, set forth the terms of your employment with the Company and supersede any prior representations or agreements including, but not limited to, any representations made during your recruitment, interviews or pre-employment negotiations, whether written or oral. You confirm that by accepting this offer you will not breach any contract or agreement to which you are a party. This offer of employment will terminate if it is not accepted, signed and returned by July 27, 2007.

Agreed to and accepted:

Signature: _____ [redacted] _____ Date: ___July 16, 2007__

Printed Name: _____Justin Maxwell_____

Enclosures:

Duplicate Original Letter
At-Will Employment, Confidential Information, Invention Assignment and Arbitration Agreement
Summary of Benefits package